

1.

CASE #	CASE NAME	HEARING NAME
CVRI2302008	QUINTERO vs WON	Motion to Compel and Motion to Deem Matters Admitted

Tentative Ruling:

These motions are unopposed. Accordingly, both are granted in all respects. Moving party to give notice of ruling within 10 days of this ruling. The Court has signed the proposed order re: form interrogatories. However, the Court has not received a proposed order for the motion to deem matters admitted. Moving party to submit an order for Court's signature.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2304264	ANDERSON vs WRIGHT	MOTION TO SET ASIDE

Tentative Ruling:

This is a partition action. Plaintiff William Anderson filed the operative Complaint on August 8, 2023 seeking partition of the real property located at 1365 Melstone Street, Beaumont, California. (Complaint ¶12.)

On August 25, 2025, the Court dismissed the entire action with prejudice. The matter was dismissed because on April 25, 2025, the date the matter was set for trial, the parties informed the court they had reached an unconditional settlement. The court did not receive a declaration stating good cause to not dismiss the matter (Local Rule 3116), so it was dismissed.

Plaintiff then moved to set aside the dismissal, reinstate the Complaint, and enter judgment in the sum of \$50,000 in favor of plaintiff pursuant to the parties' settlement agreement reached on April 25, 2025. The motion was made pursuant to CCP §473(b) and on the grounds that Defendant defaulted on the settlement agreement because she failed to refinance or remove Plaintiff's name from the mortgage loan as agreed to. On December 12, 2025, the Court granted the motion and set aside the dismissal. The Court set an OSC re: why the case should not be dismissed after settlement to be heard on February 26, 2026. (12/12/25 Minute Order.) The OSC was later continued to April 20, 2026. (2/25/26 Minute Order.)

Defendant Wright then brought a motion to "strick[e] and vacat[e] all filings made after the dismissal of this action on August 25, 2025, including but not limited to the September 25, 2025 filings and purported judgment in the amount of \$50,000" on the following grounds: (1) the action was dismissed after Plaintiff failed to comply with a Court-ordered deadline to file an Order to Show Cause arising from mediation; (2) upon dismissal, the Court lacked jurisdiction to accept further merits-based filings absent a motion or order restoring jurisdiction; (3) the post-dismissal filings are void as a matter of law; and (4) the unauthorized filings interfered with Defendant's right to notice and due process, particularly prejudicial to a self-represented litigant. Defendant claimed she did

not receive notice of the September 25, 2025 filings and was deprived of an opportunity to be heard.

On April 20, 2026, the court set aside the order granting the Motion to Set Aside Dismissal under CCP §128(8). As of that date, the matter stood as dismissed with no future court dates and all future dates were vacated. The court noted Plaintiff could re-file the Motion to Set Aside and correctly serve the motion on Defendant.

Plaintiff did just that and that is the motion presently before the court. Plaintiff argues the court has the power to control its docket and make its ruling conform to law and justice by setting aside the dismissal once Defendant is properly served with notice of the motion. Plaintiff asserts his credit rating continues to be negatively impacted because Defendant has not adhered to the terms of the settlement and removed him from the mortgage. Plaintiff asks the court to set the matter for trial to address the merits of the case.

Defendant opposes the motion. Defendant argues she did not sign any written settlement agreement authorizing a \$50,000 judgment and no settlement terms authorizing a \$50,000 judgment were orally placed on the record before the court. As a result, Defendant argues Plaintiff has not shown the threshold basis for entry of judgment under CCP §664.6. Defendant notes she is not waiving mediation confidentiality. On August 17, 2026, Defendant provided the court with a supplemental declaration which states Plaintiff called Defendant on April 22, 2026. (Wright Decl. ¶3.) During that call, Defendant claims Plaintiff said he did not know his attorney was seeking an additional \$50,000 from Wright and he had not authorized such action. (¶8.)

Analysis

Under CCP §473(b), the court has broad discretion to relieve a party “upon any terms as may be just...from a judgment, dismissal, order or other proceeding taken against him or her through his or her mistake, inadvertence, surprise or excusable neglect.” CCP § 473(b) notably provides for two distinct types of relief – “discretionary” and “mandatory.” (*Luri v. Greenwald* (2003) 107 Cal.App.4th 1119, 1124.) Under the discretionary relief provision, the court has discretion to allow relief from a “judgment, dismissal, order, or other proceeding taken against” a party or his or her attorney on a showing of “mistake, inadvertence, surprise, or excusable neglect.” (*Ibid*; see also *Martin Potts & Associates, Inc. v. Corsair, LLC* (2016) 244 Cal.App.4th 432, 438.) Under the mandatory relief provision, the court must vacate any “resulting default judgment or dismissal entered” upon a showing by attorney declaration of “mistake, inadvertence, surprise, or neglect.” (*Luri, supra*, 107 Cal.App.4th at 1124; *Martin Potts & Associates, supra*, 244 Cal.App.4th at 438.) Importantly, the statute requires the court to set aside dismissals – not just defaults – based upon an attorney declaration of fault. (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2023), §§ 5:299-5:299.2, 5330.6-5:300.8.)

The motion does not explain any mistake, inadvertence, surprise, or excusable neglect that serves as the basis for setting aside the dismissal. The motion is supported by Attorney Onyejekwe’s declaration, which briefly explains the procedural history related to this motion (¶2), asks the court to take judicial notice of the court’s file for this matter

(¶3), and states: “Plaintiff has always made it clear that he wants his name off the real property. By so doing, he will be able to have closure with defendant and the current property and will be able to try to purchase a property of his own without the encumbrance of defendant’s property.” (¶3.) Finally, Attorney Onyejekwe “implore[s] this court to set aside the order of dismissal; enforce the parties’ settlement agreement and set the matter for trial.” (¶4.)

The motion is also supported by Plaintiff’s declaration. Plaintiff explains he and defendant entered into a Settlement Agreement on April 25, 2025 with the Court’s ADR Mediator. (¶2.) Plaintiff states the parties agreed Defendant would give Plaintiff \$270,000 in a Cashier’s check in exchange for Plaintiff executing a notarized quitclaim deed. Defendant was then to record the deed and apply for refinancing with the mortgage lender and remove Plaintiff’s name from the loans. (¶2.) Plaintiff states he executed the quitclaim deed and received \$270,000. (¶3.) Plaintiff claims Defendant has not made any effort since August 2025 to remove his name from the loan. (¶8.) Plaintiff concludes his declaration with: “Since Defendant has made no effort to refinance or remove my name from the mortgage loan to date, I implore this court to reinstate my complaint, and to set this matter for trial since it does appear that defendant will be unable to refinance any time soon.” (¶13.)

The motion is devoid of any explanation of any excuse, mistake, or other reason to support setting aside the dismissal. The court cannot simply set aside a dismissal under CCP §473(b) because Plaintiff now wishes they had not dismissed the case. Neither Plaintiff nor his counsel provide any type of mistake, excuse, surprise, or excusable neglect to warrant setting aside the dismissal.

Plaintiff’s Reply provides more information than the initial motion. Attorney Onyejekwe provides a second declaration where he states: “On August 25, 2025, the Court dismissed the action with prejudice. I mistakenly failed to prevent dismissal or to ensure before dismissal that the Court retained an effective procedure to enforce every unperformed settlement term. I accept responsibility for any mistake, inadvertence, surprise, or neglect on my part that caused or contributed to the dismissal operating against Plaintiff’s rights. Plaintiff did not direct me to abandon the refinance term or the stipulated consequence for nonperformance.” (¶¶9-10.) Attorney Onyejekwe’s declaration filed in support of the Reply shows mistake and excusable neglect that would trigger the mandatory relief provision. However, this testimony was not provided with the initial motion so Defendant has not had a chance to review it or respond. New evidence is not permitted with reply papers and is only allowed in exceptional cases. (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537-1538.) The Court has discretion to accept new evidence in reply papers so long as the opposing party is given an opportunity to respond. (*Alliant Ins. Services, Inc. v. Gaddy* (2008) 159 Cal.App.4th 1292, 1307-1308.) To the extent the court considers the evidence filed in support of the Reply, the court must first grant Defendant the opportunity to respond to the new evidence.

The motion also asks the court to enforce the parties’ settlement agreement. This would be an entirely separate motion that would have to be brought after the dismissal was set aside. Plaintiff still has recourse to enforce the settlement agreement as he can file a separate lawsuit for breach of contract. However, the court cannot enforce any

purported settlement agreement in this matter when the case has been dismissed and there is no basis for setting aside that dismissal.

The Court does not consider the new evidence contained in the Reply. Motion is denied.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2404824	RIVERA vs FORD MOTOR COMPANY	MOTION FOR ATTORNEYS' FEES

Tentative Ruling:

Moving party: Plaintiff Wendy Rivera

Responding party: Defendant Ford Motor Company

This is a lemon law case. On September 23, 2022, Wendy Rivera aka Wendy Noemi Rivera-Ventura ("Plaintiff") purchased a 2022 Ford Explorer ("Subject Vehicle") which was manufactured and/or distributed by Defendant Ford Motor Company ("Defendant" or "Ford"). In connection with the purchase, Plaintiff received a Basic Warranty that included bumper-to-bumper coverage for defects in materials and workmanship for the earlier of 36 Months (3 Years) or 36000 miles, a Drivetrain/Powertrain Warranty that covered defects in materials and workmanship for the earlier of 60 Months (5 Years) or 60000, and a California Emissions Warranty that covered defects in materials and workmanship in emissions parts for the earlier of 7 years or 70,000 miles. The Subject Vehicle developed nonconformities during the warranty period. Despite sufficient repair attempts, Ford was unable to cure the defects. Ford failed to repurchase the Subject Vehicle in violation of the Song Beverly Consumer Warranties Act ("Song Beverly Act").

On August 28, 2024, Plaintiff filed the Complaint against Ford and Warren Anderson Ford. The Complaint asserts two causes of action for: (1) Violations of the Song Beverly Act--Breach of Express Warranty against GM; and (2) Negligent Repair..

Plaintiff now moves for attorney's fees in the amount of \$24,765.00 and costs in the amount of \$3,761.52 under the fee-shifting provision of the Song Beverly Act. Plaintiff argues that the hours were reasonable, and all duplicative hours have been removed from billing records. Plaintiff argues that staffing with several attorneys was reasonable because each attorney specializes in unique aspects of litigation. Plaintiff invites defense counsel to produce records for comparison. Plaintiff argues that the rates are reasonable based on the nature and complexity of the case and skill of counsel. Plaintiff requests a 1.5 multiplier based on contingency risk. Plaintiff argues that the costs are reasonable.

Defendant argues that the rates requested are excessive for Riverside County and should be reduced to \$275 for non-partners and \$350 for partners based on the Real Rate Report. Defendant argues that all hours incurred by Castillo Law must be stricken because the attorneys were not licensed in California. Defendant argues that Plaintiff should not recover fees in connection with the discovery motions because the Court already addressed the issue of sanctions. Defendant argues that the fees for the PMQ